

Tentative Rulings for July 7, 2026 Department 3

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 3 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 692 7358**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2405514	REESE VS GENERAL MOTORS LLC	MOTION TO BE RELIEVED AS COUNSEL FOR MICHELLE M REESE

Tentative Ruling: Deny.

“The attorney in an action or special proceeding may be changed at any time before or after judgment of final determination, as follows: (1) Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; (2) Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.) If the attorney is the moving party, the right to withdraw is conditioned on proper notice and a showing of why a court order is required – that is, why substitution by mutual consent cannot be obtained. (See Cal. Rules of Court, rule 3.1362.) “The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court.” (*Manfredi & Levine v. Superior Court* (1998) 66 Cal.App.4th 1128, 1133; see also *Lempert v. Superior Court* (2003) 112 Cal.App.4th 1161, 1173 [“The determination whether to grant or deny an attorney’s motion to withdraw as counsel of record lies within the sound discretion of the trial court, having in mind whether such withdrawal might work an injustice in the handling of the case”].) The court’s discretion in this area should be “exercised reasonably.” (*Mandell v. Superior Court* (1977) 67 Cal.App.3d 1, 4.) An attorney should not be permitted to withdraw if injustice to third party results. (*Linn v. Superior Court in and for Los Angeles County* (1928) 79 Cal.App. 721.)

I. Merits

a. Timeliness

GM contends the motion is untimely because it was filed on June 12, 2026 to be heard on July 7, 2026. (Code Civ. Proc., § 1005, subd. (b) [all moving and supporting papers shall be served and filed at least 16 court days before the hearing plus applicable time extension under section 1013].) Accordingly, SPC should have filed its motion on June 9, 2026, not June 12, 2026. (*Ibid.*)

b. California Rules of Court, rule 3.1362(d) – Defective Notice

Rule 3.1362 governs the procedure for an attorney to be relieved as counsel, specifying required forms, declarations, service, and court orders.

SLP attests it served Plaintiff by mail at her last known address. (Chae Decl., ¶3a(1).) Rule 3.1362(d) requires that if service was to the last known address, the declaration must state the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1)(B).) SLP checked the box attesting that it confirmed within the past 30 days that the address is current, “by mail, return receipt requested.” (*Id.* at ¶3b(1)(a).) However, SLP also checks the box indicating it has been unable to

confirm that the address is current or to locate a more current address for Plaintiff after mailing the motion papers to the client's last known address, return receipt requested. (*Id.* at ¶3b(2)(a).) Thus, SLP fails to comply with Rule 3.1362(d)(1)(B) as the declaration does not reflect SLP made reasonable efforts to locate a more current address within 30 days before the filing of the motion to be relieved. "As used in this rule, 'current' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current." (Cal. Rules of Court, rule 3.1362.)

Alternatively, SLP attests copies of the motion papers, including Chae's declaration, was sent to Plaintiff's email address at mreese0983@gmail.com. (*Id.* at ¶7.) This still fails to comply with Rule 3.1362(d)(2), which requires a declaration stating that the electronic service address is the client's current electronic service address.

Based on the foregoing, SLP's notice to Plaintiff was defective. Accordingly, the Court denies the motion for defective notice under Rule 3.1362.

c. Good Cause

Rule 3.1362(c) provides: "The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)."

Here, Chae attests to "a complete breakdown of the attorney-client relationship between SLP" and Plaintiff. (Chae Decl., ¶2.) Since February 25, 2026, SLP has had no success in communicating with Plaintiff despite SLP's numerous attempts by telephone, email, and letters. (*Ibid.*) Plaintiff was served by mail, return receipt requested, of the instant motion. (*Id.* at ¶3.)

Contrary to GM's argument that Chae failed to establish good cause, having a client who has been radio silent for 4 months is good cause. A "lawyer may withdraw from representing a client if...(4) the client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively..." (Cal. Rules of Court, rule 1.16(b)(4).) A complete breakdown in communication by Plaintiff renders it unreasonably difficult for Chae to carry out representation effectively. Thus, good cause is established.

d. Prejudice

Although GM argues it will experience severe prejudice because a continuance of the trial would allow Plaintiff more time to develop her case, this argument is meritless given the same time is afforded GM. This also undermines GM's claim that the time it has already invested in trial preparation would be squandered with a continuance of the trial.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500617	LOPEZ VS LOPEZ	MOTION APPLICATION FOR APPOINTMENT OF GUARDIAN AD LITEM

Tentative Ruling: Deny.

There is insufficient evidence presented that there is a need for a Guardian ad litem at this time. There is no capacity declaration signed and filed under penalty of perjury by an expert witness. Nor is a diagnosis of dementia sufficient in itself to establish incapacity. (*In re Marriage of Greenway* (2013) 217 Cal.App.4th 628.) Legally, a medical declaration is not required nor determinative. Medical testimony can be very helpful, but only if it provides evidence to assist the court in making the findings required to determine incapacity. Lay testimony can also be sufficient, if it meets the standards for appointing a GAL (which is outlined in C.C.P. §372(a)(2) and *In re Christina B.* (1993) 19 Cal.App.4th 1441). Here those standards have not been met.

The issue of conflict of interest must be determined by evidence presented to the Court. Herein, there is insufficient evidence for the Court to make a determination one way or the other. At the proper time the parties may wish to present evidence in the form of declarations under penalty of perjury or request an evidentiary hearing for the Court to make this determination.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2500617	LOPEZ VS LOPEZ	MOTION TO BE RELIEVED AS COUNSEL FOR ALBERT LOPEZ

Tentative Ruling: Grant. The order shall not be effective until counsel has filed a proof of service indicating service on the client, including all future dates for the case.

An attorney's motion to be relieved as counsel is governed by CRC 3.1362. The motion must be directed to the client, and must be made on the mandatory Judicial Council Form Civil MC-051. No memorandum of points and authorities is required. The motion must be supported by a declaration on Judicial Council Form Civil MC-052. The declaration must state in general terms (without compromising the confidentiality of the attorney-client relationship) why a court order is required, as opposed to a substitution by mutual consent. Where the ground for withdrawal is a "conflict of interest" with the client, the attorney must describe the general nature of the conflict as fully as possible, within the confines of the attorney-client privilege (Manfredi & Levine vs. Superior Court (Barles) (1998) 66 Cal. App. 4th 1128, 1134). As a practical matter, attorneys moving to withdraw on the grounds of a conflict of interest or for other privileged reasons frequently offer to provide additional details *in camera*, if the Court so desires.

The declaration must also comply with CRC 3.1362(d) if the moving papers are served on the client by mail. The declaration must state facts showing that the service address is the current residence or business address of the client, or that the service address is the last known residence or business address of the client, and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before filing the motion to be relieved as counsel. As used in the Rule, “current” means that the address was confirmed within 30 days before the filing of the motion. Merely demonstrating that the notice was sent to the client’s last known address and was not returned is not, by itself, sufficient to demonstrate the address is current (CRC 3.1362(d)). If service is by mail, CCP §1011(b) applies.

The Motion, Declaration, and Proposed Order must be served on the client and all parties who have appeared in the case (CRC §3.1362(d)). The Proposed Order Granting Attorney’s Motion to Be Relieved as Counsel must be prepared on Judicial Council Form Civil MC-053, and must be lodged with the Court with the moving papers (CRC 3.1362(e)). The Order must specify all hearing dates scheduled in the action, including the date of trial (if known). After the order is signed, a copy of the signed order must be served on the client and all parties that have appeared in the action. The Court will delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the Court.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504830	VINCENT VS UBA	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling: Sustain. No timely opposition. 30 days leave to amend.

The SAC presented by Plaintiff is uncertain on its face, presenting insufficient statements to constitute causes of action to which the defendant may provide a defense. The particularity required in pleading facts depends on the extent to which the defendant, in fairness, needs detailed information that the Plaintiff can conveniently provide. *Doheny park Terrace Homeowners Ass’n, Inc. v. Truck Insurance Exchange* (2005) 132 Cal. App. 4th 1076.

Further, in the second alleged cause of action, plaintiff has failed to properly allege a cause of action for injunctive relief. An injunction is not a cause of action but is solely a remedy; a cause of action must exist before a judge may grant a request for injunctive relief *Venice Coalition to Preserve Unique Community Character v. City of Los Angeles* (2019) 31 Cal. App. 5th 42, 54 and *Ivanoff v. Bank of America, N.A* (2017) 9 Cal. App. 5th 719, 734.

As to the Second, Fourth, Seventh and Eighth Causes of action, plaintiff has failed to properly allege the elements of fraud. Fraud allegations must be pleaded with more detail than other causes of action *Heritage Pacific Finance, LLC v. Monroy* (215 Cal. App. 4th 972, 989.) The policy of liberal construction of pleadings does not apply to fraud causes of action. The facts constituting the fraud, including every element of the cause of action, must be alleged “factually and specifically,” i.e., the Plaintiff must plead facts showing the defendant’s misrepresentation (or omission that the defendant had a duty to disclose), defendant’s knowledge of falsity (“scienter”), the defendant’s intent to defraud (i.e., to induce the plaintiff’s reliance on the misrepresentation), the plaintiff’s justifiable reliance, and the resulting damage/ *Kalnoki v. First Am. Trustee Servicing Solutions, LLC* (2017) 8 Cal. App. 5th 23, 35.

As to the Third Cause of Action for Quiet Title, Plaintiff has failed to allege the proper elements of a Quiet Title action and supporting evidence. CCP 761.020

As to the Fifth Cause of Action for Breach of Contract, Plaintiff has failed to properly allege the elements of Breach of Contract and supporting evidence. A breach of contract is not actionable without damages, except for a potential award of nominal damages. *Levy v. Only Cremations for Pets, Inc.* (2) 57 Cal. App. 5th 203, 214. A written contract may be pleaded either by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated by reference—or by its legal effect, i.e., by alleging the substance of its relevant terms *Construction Protective Services, Inc. v TIG Specialty Insurance Co.* (2002) 29 Cal 4th 189, 198-199.; *Heritage Pacific Finance, LLC v. Monroy* (2013) 215 Cal. App. 4th 972, 993 (alleging substance of contract’s relevant terms is more difficult because it requires careful analysis of instrument, comprehensiveness in statement, and avoidance of legal conclusions). An oral contract may be pleaded generally as to its effect, because alleging the exact words is rarely possible *Scolinos v. Kolts* (1995) 37 Cal. App. 4th 635, 640-641. Plaintiff must allege the consideration for the contract, however, because the statutory presumption of consideration does not apply to an oral contract *Stevenson v. San Francisco Housing Authority* (1994) 24 Cal. App. 4th 269, 284.

As to the Sixth Cause of Action for Breach of the Covenant of Good Faith and Fair Dealing, this appears to rely on the same acts and seek the same damages or other relief already claimed in the cause of action for breach of contract, making this superfluous 57 Cal. App. 5th at 215.

Plaintiff shall have 30 days to amend the SAC.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2504830	VINCENT VS UBA	MOTION TO STRIKE 2ND AMENDED COMPLAINT

Tentative Ruling: Moot in light of the Court’s ruling on #3 above.